CRIMINAL LAW

Friday, Oct. 9
(Lecture 12)

Hello! This slide will help you prepare for today's class.

- **We will start today with two more 'symmetry chart' practice exercises.**
- **Next, we will turn to a new topic: objective fault. Please be prepared to discuss the cases: *Hundal*, *Creighton*, *Beatty*, *Javanmardi* and *Goforth*.**

CRIMINAL LAW

Friday, October 9
(Lecture 12)

Let's build another 'symmetry' chart!

57(2) Every one who, while in or out of Canada, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, makes a written or an oral statement that he knows is false or misleading [is guilty of a hybrid offence]

Start with the conduct – what is it?

Symmetry – *what's next?*

57(2) Every one who, while in or out of Canada, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, makes a written or an oral statement that he knows is false or misleading [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Conduct: Makes written/oral statement	
{Voluntariness}	//////////////////////////

Symmetry – *any mens rea language?*

57(2) Every one who, while in or out of Canada, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, ~~makes a written or an oral statement~~ that he knows is false or misleading [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Conduct: Makes written/oral statement	
Circumstance: false or misleading	
Circumstance: in or out of Canada	
{Voluntariness}	**//////////////////////////**

Symmetry – *what's left?*

57(2) Every one who, ~~while in or out of Canada~~, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, ~~makes a written or an oral statement~~ that he knows is ~~false or misleading~~ [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Makes written/oral statement [conduct]	
Circumstance: false or misleading	Knowledge [or wilful blindness]
Circumstance: in or out of Canada	
{Voluntariness}	//////////////////////////

Symmetry – *what's left?*

57(2) Every one who, ~~while in or out of Canada~~, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, ~~makes a written or an oral statement that he knows is false or misleading~~ [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Conduct: Makes written/oral statement	
Circumstance: false or misleading	Knowledge
Circumstance: in or out of Canada	
//////////////////////////	**[Ulterior purpose]** For purpose of procuring passport/material alteration for self/other
{Voluntariness}	//////////////////////////

Symmetry – *now, fill in the blanks!*

57(2) Every one who, ~~while in or out of Canada~~, ~~for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport~~, ~~makes a written or an oral statement that he knows is false or misleading~~ [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Makes written/oral statement **[conduct]**	
Circumstance: false or misleading	Knowledge **[or wilful blindness]**
Circumstance: in or out of Canada	
//////////////////////////	For purpose of procuring passport/material alteration for self/other **[ulterior purpose]**
{Voluntariness}	//////////////////////////

Symmetry – *now, fill in the blanks!*

57(2) Every one who, ~~while in or out of Canada~~, ~~for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport~~, ~~makes a written or an oral statement that he knows is false or misleading~~ [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Makes written/oral statement **[conduct]**	**Intent or Recklessness**
Circumstance: false or misleading	**Knowledge [or wilful blindness]**
Circumstance: in or out of Canada	**Knowledge/wilful blindness**
//////////////////////////	**For purpose of procuring passport/material alteration for self/other [ulterior purpose]**
{Voluntariness}	//////////////////////////

Intent vs. Ulterior Purpose

Lotte is Dutch. She fills out a Canadian passport application. She wants to procure a Canadian passport so that she can move to Canada and work without having to obtain a visa. She purposefully checks the box to indicate that one of her parents was born in Canada. She knows both her parents were born in Amsterdam.

What is Lotte's …

- **Ulterior Purpose?**
- Motive?

Intent vs. Ulterior Purpose

Lotte is Dutch. She fills out a Canadian passport application. She wants to procure a Canadian passport so that she can move to Canada and work without having to obtain a visa. She purposefully checks the box to indicate that one of her parents was born in Canada. She knows both her parents were born in Amsterdam.

What is Lotte's …

- **Ulterior Purpose – get a Canadian passport**
- Motive – work in Canada without a visa

Let's apply our chart!

Lotte is Dutch. She fills out a Canadian passport application. She wants to procure a Canadian passport so that she can move to Canada and work without having to obtain a visa. She purposefully checks the box to indicate that one of her parents was born in Canada. She knows both her parents were born in Amsterdam.

Actus Reus	*Mens Rea*
Makes written/oral statement **[conduct]**	**Intent or Recklessness**
Circumstance: false or misleading	**Knowledge [or wilful blindness]**
Circumstance: in or out of Canada	**Knowledge/wilful blindness**
//////////////////////////	**For purpose of procuring passport/material alteration for self/other [ulterior purpose]**
{Voluntariness}	//////////////////////////

Subjective *Mens Rea* & Symmetry

Lotte is Dutch. She fills out a Canadian passport application. She wants to procure a Canadian passport so that she can move to Canada and work without having to obtain a visa. She purposefully checks the box to indicate that one of her parents was born in Canada. She knows both her parents were born in Amsterdam.

Actus Reus	*Mens Rea*
Makes written/oral statement [conduct] – ***Lotte checks box***	**Intent or Recklessness** ***Lotte intends to check the box***
False/misleading [circumstance] ***Lotte's parent was not born in Canada***	**Knowledge** ***Lotte knows both her parents were born in Amsterdam***
In or out of Canada [circumstance] ***Obviously!***	**Knowledge/wilful blindness** ***Obviously!***
//////////////////////////	**For purpose of procuring passport/material alteration for self/other [ulterior purpose]** ***Lotte's purpose is to procure a Canadian passport***
{Voluntariness} ***No air of reality. No need to address***	**//////////////////////////**

Let's try a trickier 'symmetry' chart…

Failure to stop after accident

320.16 (1) Everyone commits an offence who operates a conveyance and who at the time of operating the conveyance knows that, or is reckless as to whether, the conveyance has been involved in an accident with a person or another conveyance and who fails, without reasonable excuse, to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.

Symmetry – *find the conduct*

320.16 (1) Everyone commits an offence who operates a conveyance and who at the time of operating the conveyance knows that, or is reckless as to whether, the conveyance has been involved in an accident with a person or another conveyance and who fails, without reasonable excuse, to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.

Actus Reus	*Mens Rea*
Conduct	
{Voluntariness}	//////////////////////////

Symmetry – *what's next?*

320.16 (1) Everyone commits an offence who operates a conveyance and who at the time of operating the conveyance knows that, or is reckless as to whether, the conveyance has been involved in an accident with a person or another conveyance and **who fails**, without reasonable excuse, **to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.**

Actus Reus	*Mens Rea*
Conduct – **fail to stop conveyance, give name/address, offer assistance [omission]**	
{Voluntariness}	//////////////////////////

Symmetry – *what's left?*

320.16 (1) Everyone commits an offence who **operates a conveyance** and who at the time of operating the conveyance knows that, or is reckless as to whether, **the conveyance has been involved in an accident with a person or another conveyance** and ~~who fails~~, ~~without reasonable excuse~~, ~~to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.~~

Actus Reus	*Mens Rea*
Conduct – **fail to stop conveyance, give name/address, offer assistance**	
Circumstance - operates a conveyance	
Circumstance - conveyance involved in accident with person or another conveyance	
{Voluntariness}	//////////////////////////

Symmetry – *anything else?*

320.16 (1) Everyone commits an offence who ~~operates a conveyance~~ and who **at the time of operating the conveyance knows that, or is reckless as to whether**, ~~**the conveyance has been involved in an accident with a person or another conveyance**~~ and ~~who fails~~, **without reasonable excuse**, ~~to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.~~

Actus Reus	*Mens Rea*
Conduct – **fail to stop conveyance, give name/address, offer assistance**	
Circumstance - operates a conveyance	
Circumstance - conveyance involved in accident with person or another conveyance	**Knowledge/recklessness** [at the time of operating the conveyance]
[Circumstance] – without reasonable excuse	
{Voluntariness}	//////////////////////////

Symmetry – *now fill in the blanks!*

320.16 (1) Everyone commits an offence who ~~operates a conveyance~~ and who ~~at the time of operating the conveyance knows that, or is reckless as to whether~~, ~~**the conveyance has been involved in an accident with a person or another conveyance**~~ and ~~who fails~~, ~~without reasonable excuse~~, ~~to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.~~

Actus Reus	*Mens Rea*
Conduct – **fail to stop conveyance, give name/address, offer assistance**	
Circumstance - operates a conveyance	
Circumstance - conveyance involved in accident with person or another conveyance	**Knowledge/recklessness** [at the time of operating the conveyance]
[Circumstance] – without reasonable excuse	
{Voluntariness}	//////////////////////////

Symmetry – done!

320.16 (1) Everyone commits an offence who ~~operates a conveyance~~ and who ~~at the time of operating the conveyance knows that, or is reckless as to whether~~, ~~**the conveyance has been involved in an accident with a person or another conveyance**~~ and ~~who fails~~, ~~without reasonable excuse~~, ~~to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.~~

Actus Reus	*Mens Rea*
Conduct – fail to stop conveyance, give name/address, offer assistance	**Intent or Recklessness**
Circumstance - operates a conveyance	**Knowledge/wilful blindness**
Circumstance - conveyance involved in accident with person or another conveyance	**Knowledge/recklessness** [at the time of operating the conveyance]
[Circumstance] – without reasonable excuse	/
{Voluntariness}	//////////////////////////

Subjective *Mens Rea*

- *Motive [need not be proved]*
- **Ulterior Purpose**
- **Intent**
- **Recklessness**
- **Knowledge**
- **Wilful Blindness**

What was the accused <u>actually</u> thinking?

What did they know, suspect, perceive, recognize, intend…?

Symmetry & blameworthiness (2/5)

Actus Reus	*Mens Rea*
(Attempts to) prevent/impede	Intent or recklessness
Person attempting to save own life	Knowledge/wilful blindness

Director is rushing to get her EpiPen. Stagehand blocks her path in the narrow corridor. He does not know she is in distress and trying to get her medicine and has a question about the set.

Objective *Mens Rea*

Lax's young child picks up his gun from a low shelf and accidently fires it at the wall, injuring someone in the neighbouring apartment. Lax did not know his child would be able to reach the gun or pull the trigger.

Careless use of firearm, etc.

86(1) Every person commits an offence who, without lawful excuse, uses, carries, handles, ships, transports, or stores a firearm […] in a careless manner or without reasonable precautions for the safety of other persons

Objective *Mens Rea*

Dangerous operation

320.13(1) Everyone commits an offence who operates a conveyance [i.e., a vehicle] in a manner that, having regard to all of the circumstances, is dangerous to the public.

Objective *Mens Rea*

"Objective *mens rea* […] is not concerned with what the accused intended or knew. Rather, the mental fault lies in failure to direct the mind to a risk which the reasonable person would have appreciated."

- *R v. Creighton* (per McLachlin J. as she then was) (S&C 536)

Objectives for Week 6

42. **Distinguish subjective fault from objective fault.**

43. Build your "statutory interpretation toolkit":
    - Subjective fault presumption

44. Reflect on the disagreement between Lamer C.J. and McLachlin J. (as she then was) in *Creighton* about the nature of the objective test.

45. Explain and apply the modified objective test.

46. Explain when a marked and substantial departure standard applies.

Subjective vs. Objective Fault

Subjective *Mens Rea*

- Ask: "What was Accused actually thinking?"
- Crown must prove the Accused actually had the required state of mind in relation to the conduct, circumstances, and/or consequences.
- I.e., Crown must prove a positive state of mind.

Objectives *Mens Rea*

- Ask: "What would a reasonable person have done in the circumstances—and to what extent did the accused fail to achieve that standard of care?"
- Focus is on the accused's conduct
- (In theory, one could argue that the conduct indicates a failure to form an appropriate mental state, which is the locus of fault—but the analysis is really concerned with the *conduct*.)

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R. v. Zora at paras. 32-33

Determining the *mens rea* […] involves an exercise in statutory interpretation to discern the fault standard intended by Parliament. A key part […] is the long-standing presumption that Parliament intends crimes to have a subjective fault element […]

[T]his presumption of subjective fault reflects the underlying value in criminal law that the "morally innocent should not be punished" (*A.D.H.*, at para. 27). […]

R. v. Zora at para. 33

[…] This starting point is not an absolute rule, but rather captures what was assumed to be present in the mind of Parliament when enacting the provision […] The presumption of subjective fault will only be overridden by "clear expressions of a different legislative intent"

[…] Courts must read the words of the statute in their entire context, in their grammatical and ordinary sense harmoniously with the scheme and objects of the statute to discern whether there is a clear legislative intention to overturn the presumption of subjective fault […] If a criminal offence in the *Code* is ambiguous as to the *mens rea*, then the presumption of subjective fault has not been displaced.

R v Hundal

"…the wording of the section itself which refers to the operation of a motor vehicle 'in a manner that is dangerous to the public, having regard to all the circumstances' suggests that an objective standard is required. The 'manner of driving' can only be compared to a standard of reasonable conduct."

Objective *Mens Rea*

5 common categories of objective *mens rea* offences:

1. **Dangerous conduct offences (e.g. dangerous driving)**
2. **Careless conduct offences (e.g. careless storage of firearm)**
3. **Predicate offences (e.g. manslaughter – *More on this later!*)**
4. **Criminal negligence offences (*CC* sections 219-221)**
5. **Duty-based offences (e.g. failure to provide the necessaries of life) *[but not all duty-based offences!]***

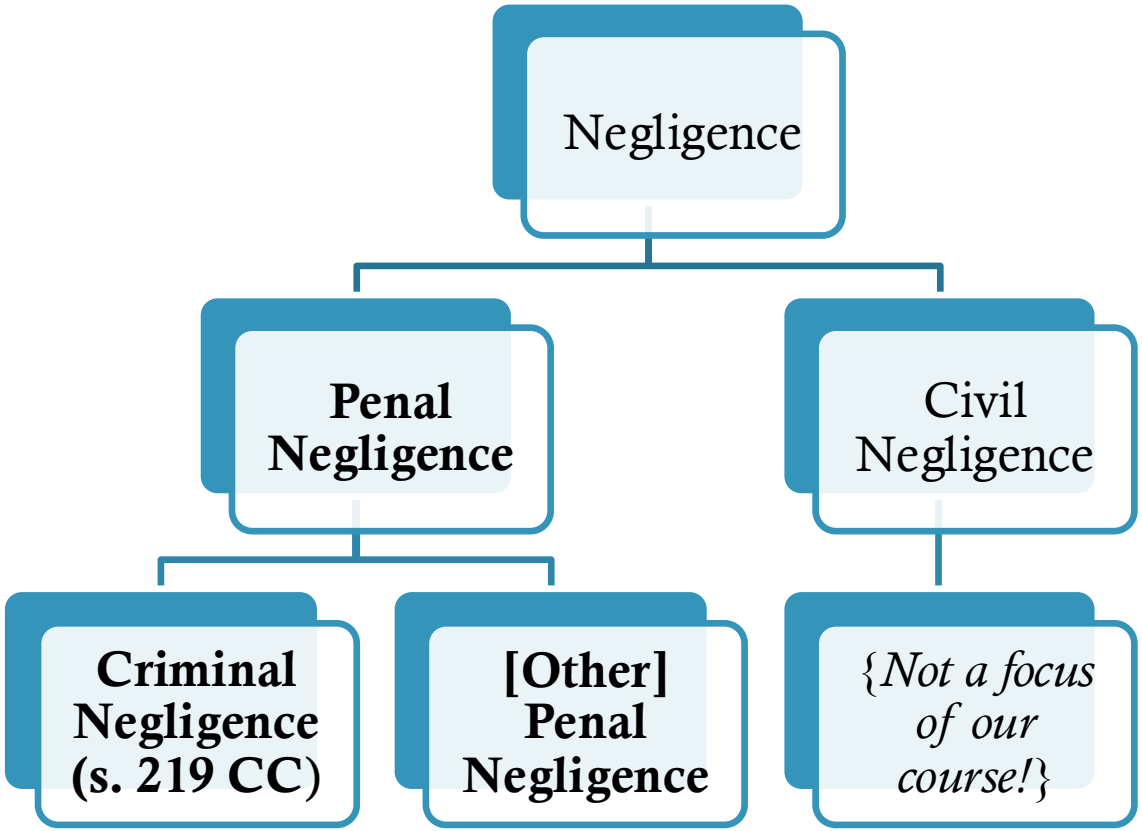
(*R. v. A.D.H.*, 2013 SCC 28)

Statutory Interpretation Toolkit

- ✓ The modern principle of statutory interpretation (*Rizzo Shoes*)
- ✓ The principle of bilingual interpretation
- ✓ The rule of strict construction (*Paré*)
- ✓ The purposive approach to *Charter* interpretation (*Hunter)*
- ✓ The symmetry rule of thumb [for subjective *mens rea*] (Roach)
- ✓ **The subjective fault presumption [for *mens rea*] (*Théroux; Zora*)**



A word on terminology



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Elliot v. C., [1983] 1 WLR 939, [1983] 2 All ER 1005



Objective Fault

"The central issue is how to adjust the objective standard so that it does not apply to those who cannot reasonably be held responsible for satisfying that standard, while not collapsing objective standards into subjective ones." (Kent Roach)

Manslaughter (*simplified*)

Actus Reus	***Mens Rea***
Unlawful act	**[MR for underlying offence]**
{Voluntariness}	//////////////////////
Death & causation [consequence]	**Objective foreseeability of non-trivial bodily harm**

We will see this chart again later – with more details and a full explanation…

R. v. Creighton

Lamer C.J. (with Sopinka, Iacobucci & Major JJ.)

McLachlin J. (with L'Heureux-Dubé, Gonthier & Cory JJ.)

La Forest J.

R. v. Creighton

R. v. Naglik, [1993] 3 S.C.R. 122

- **Failure to provide necessaries of life (s. 215)**
- **Youth, inexperience, lack of education – different standard?**

R. v. Gosset, [1993] 3 S.C.R. 76

- **Manslaughter – careless use of a firearm**
- **Accused a police officer**
- **Training, superior knowledge does – different standard?**

R. v. Creighton – Lamer CJ

- **"The Crown bears the burden of proving beyond a reasonable doubt that a reasonable person in the context of the offence would have foreseen the risk […]"**
- **"[T]he reasonable person will be invested with any enhanced foresight the accused may have enjoyed by virtue of his or her membership in a group with special expertise or knowledge related to the conduct giving rise to the offence."**
- **"[T]he reasonable person is constructed to account for the accused's particular capacities and resulting inability to perceive and address certain risks" though "the relevant characteristics must be traits which the accused could not control or otherwise manage in the circumstances."**

R. v. Creighton – McLachlin J.

- **"In my view, the approach advocated by the Chief Justice personalizes the objective test to the point where it devolves into a subjective test, thus eroding the minimum standard of care which Parliament has laid down by the enactment of offences of manslaughter and penal negligence."**
- **"[C]onsiderations of principle and policy dictate the maintenance of a single, uniform legal standard of care for [objective *mens rea*] offences, subject to one exception: incapacity to appreciate the nature of the risk which the activity in question entails."**

R. v. Creighton

Lamer C.J. (with Sopinka, Iacobucci & Major JJ.)

- **Reasonable person invested with accused's characteristics…**

McLachlin J. (with L'Heureux-Dubé, Gonthier & Cory JJ.)

- **Reasonable person a uniform standard for all…**

La Forest J.

R. v. Creighton

La Forest J.

- Prefers subjective MR offences, but…. Parliament has the authority to create objective MR offences.
- **"[Lamer's approach] loses most of the practical advantages sought to be attained by the objective approach. […] I find McLachlin J.'s reasons more persuasive."**

R. v. Creighton – McLachlin J.

There is "a single, uniform legal standard of care for [objective *mens rea*] offences, subject to one exception: incapacity to appreciate the nature of the risk which the activity in question entails."

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42. Distinguish subjective fault from objective fault.

43. Build your "statutory interpretation toolkit":
    - Subjective fault presumption

44. Reflect on the disagreement between Lamer C.J. and McLachlin J. (as she then was) in *Creighton* about the nature of the objective test.

45. **Explain and apply the modified objective test.**

46. Explain when a marked and substantial departure standard applies.

Modified Objective Test

Is the Accused's conduct a *marked departure* from the standard of care that a reasonable person would have exercised *in the same circumstances*? Ask:

1. **In light of all the relevant evidence, would a reasonable person have foreseen the risk and taken steps to avoid it if possible?**
2. **If so, was the accused's failure to foresee the risk and take steps to avoid it if possible a *marked departure* from the standard of care expected of a reasonable person in the accused's circumstances?**

R. v. Beatty

"It is only when there is a 'marked departure' that the conduct demonstrates sufficient blameworthiness to support a finding of penal liability."

"[W]hat constitutes a "marked departure" from the standard expected of a reasonably prudent driver is a matter of degree. The lack of care must be serious enough to merit punishment."

Modified Objective Test

Is the Accused's conduct a *marked departure* from the standard of care that a reasonable person would have exercised *in the same circumstances*? Ask:

1. **In light of all the relevant evidence, would a reasonable person have foreseen the risk and taken steps to avoid it if possible?**
2. **If so, was the accused's failure to foresee the risk and take steps to avoid it if possible a *marked departure* from the standard of care expected of a reasonable person in the accused's circumstances?**

R. v. Beatty

"The underlying premise for finding fault based on objectively dangerous conduct that constitutes a marked departure from the norm is that a reasonable person in the position of the accused would have been aware of the risk posed […] and would not have undertaken the activity. However, there will be circumstances where this underlying premise cannot be sustained because a reasonable person in the position of the accused would not have been aware of the risk or, alternatively, would not have been able to avoid creating the danger."

Modified Objective Test





Modified Objective Test

Is the Accused's conduct a *marked departure* from the standard of care that a reasonable person would have exercised *in the same circumstances*? Ask:

1. **In light of all the relevant evidence, would a reasonable person have foreseen the risk and taken steps to avoid it if possible?**
2. **If so, was the accused's failure to foresee the risk and take steps to avoid it if possible a *marked departure* from the standard of care expected of a reasonable person in the accused's circumstances?**

R. v. Beatty

249 (1) Every one commits an offence who operates

(a) a motor vehicle in a manner that is dangerous to the public, having regard to all the circumstances, including the nature, condition and use of the place at which the motor vehicle is being operated and the amount of traffic that at the time is or might reasonably be expected to be at that place;

(4) Every one who commits an offence under subsection (1) and thereby causes the death of any other person is guilty of an indictable offence and liable to imprisonment for a term not exceeding fourteen years.

"Activity-sensitive approach"

"Evidence of training and experience may be used to rebut an allegation of being unqualified to engage in an activity or to show how a reasonable person in the circumstances of the accused would have performed the activity" (SCD 476)



"Activity-sensitive approach"

Relevant circumstance or irrelevant personal characteristic?

"The issue that arises in this appeal is whether Mr. Goforth's alleged status as a secondary caregiver is a relevant circumstance or an irrelevant personal characteristic" when assessing his objective *mens rea*.

- "The existence or nature of a spousal relationship *can* be considered a relevant circumstance"
- On the facts, "none of these alleged circumstances could have possibly prevented Mr. Goforth from foreseeing the risk of harm to them.
- ***Pay attention to context! And remember the test this helps us apply.***

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46. **Explain when a marked and substantial departure standard applies.**

Criminal Negligence

219. (1) Everyone is criminally negligent who […]

(b) in omitting to do anything that it is his duty to do, shows wanton or reckless disregard for the lives or safety of other persons.

(2) For purposes of this section, "duty" means a duty imposed by law.

[S. 220 (death); s. 221 (bodily harm)]

Criminal Negligence (s. 219)

Is the Accused's conduct a *marked and substantial departure* from the standard of care that a reasonable person would have exercised in the same circumstances?

R v Javanmardi

"In *J.F.*, Fish J. did not fully explain how to distinguish between a "marked" and a "marked and substantial" departure, as the case did not "turn on the nature or extent of the difference between the two standards" (paras. 10-11). In this appeal, as well, the differences in etymology are not dispositive and need not be resolved." (para. 23)

R v Javanmardi

"These differences of degree [between "marked" and "marked and substantial" departure] cannot be measured by a ruler, a thermometer or any other instrument of calibrated scale. The words "marked and substantial" departure are adjectives used to paraphrase or interpret "wanton or reckless disregard" in section 219 of the Code but they do not, and cannot, indicate any objective and fixed order of magnitude that would have prescriptive value from one case to another. As with the assessment of conduct in cases of criminal negligence, the assessment of fault by the trier of fact is entirely contextual."

(*R. v. Fontaine*, 2017 QCCA 1730, 41 C.R. (7th) 330, at para. 27 (per Healy JA), quoted in *Javanmardi* at 22)

Modified Objective Test (Criminal Negligence)

Is the Accused's conduct a *marked and substantial departure* from the standard of care that a reasonable person would have exercised *in the same circumstances*? Ask:

1. **In light of all the relevant evidence, would a reasonable person have foreseen the risk and taken steps to avoid it if possible?**

2. **If so, was the accused's failure to foresee the risk and take steps to avoid it if possible a *marked and substantial departure* from the standard of care expected of a reasonable person in the accused's circumstances?**

Mens Rea & Symmetry

86(1) Every person commits an offence who, without lawful excuse, uses, carries, handles, ships, transports, or stores a firearm […] in a careless manner or without reasonable precautions for the safety of other persons

Actus Reus	*Mens Rea*
Uses/carries/handles/ships/ transports [*conduct*]	***Apply modified objective test!***
Firearm [*circumstance*]	
Careless manner/without reasonable precautions for safety of other persons[*circumstance*]	
Without lawful excuse [*circumstance*]	
{Voluntary}	//////////////////

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Fault Ladder

<u>Higher-Order Mental States</u> ***Accused's deeper reasons for action*** (not an 'ingredient' in most offences)	**-** *Motive [need not be proved]* **- Ulterior Purpose**
<u>Subjective Fault</u> ***What was in Accused's mind?*** (default for criminal offences, i.e., presumptive starting point when interpreting true crimes)	**- Intent** **- Knowledge/Wilful Blindness** **- Recklessness**
<u>Objective Fault</u> ***Did Accused's conduct fall below an objective standard?*** (only where presumption of subjective fault overridden by clear legislative intent)	**- Criminal Negligence** (s. 219) (*marked and substantial departure*) **- Penal Negligence [other]** (*marked departure*)